

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 2965 OF 1997

WITH

CIVIL REVISION NO. 2975 OF 1997

AND

CIVIL REVISION NO. 2976 OF 1997

IN THE MATTER OF:

An application under section 115(1) of the
Code of Civil Procedure.

-And-

IN THE MATTER OF:

Md. Abdul Barek Shaikh and others

---Plaintiff-Respondent-Petitioners.

-Versus-

Md. Sayed Ali Shaikh and others.

---Defendant-Opposite Parties.

(in C. R. No. 2965 of 1997)

Md. Abdul Barek Shaikh and others

---Defendant-Respondent-Petitioners.

-Versus-

Md. Sayed Ali Shaikh and others

---Plaintiff-Appellant-Opposite Parties

(in C. R. No. 2975 of 1997)

Md. Abdul Barek Shaikh and others

---Plaintiff-Respondent-Petitioners

-Versus-

Md. Sayed Ali Shaikh and others

---Defendant-Appellant-Opposite Parties.

Mr. Md. Matiar Rahman, Advocate

---For the Petitioners

(in all cases).

Mr. Md. Aktaruzzaman with

Mr. A. F. M. Mizanur Rahman, Advocates

---For the Opposite Party No. 1

(in all cases).

**Heard on: 04.12.2022, 07.12.2022,
13.12.2022 and 09.01.2023**
Judgment on: 09.01.2023 - 10.01.2023.

These 3 (three) Rules were issued in the year 1997 and these 3 (three) Rules were issued on similar and common types of factual and legal aspects and positions, as such, these 3 (three) Rules are taken together in order to decide by the following common judgment.

At the instance of the present plaintiff-respondent-petitioners, Md. Abdul Barek Shaikh and others, the Rule was issued in the Civil Revision No. 2965 of 1997 upon a revisional application filed under section 115(1) of the Code of Civil Procedure calling upon the opposite party No. 1 to show cause as to why the judgment and decree dated 18.02.1997 passed by the learned Subordinate Judge and Artha Rin Adalat, Khulna in Title Appeal No. 209 of 1995 (analogously heard with Title Appeal Nos. 212 of 1995 and 210 of 1995) allowing the appeal and thereby reversing the judgment and decree dated 25.05.1995 passed by the learned Assistant Judge, Terokhada, Khulna in the Title Suit No. 04 of 1994 should not be *set aside*.

At the instance of the present defendant-respondent-petitioners, Md. Abdul Barek Shaikh and others, the Rule was

issued in Civil Revision No. 2975 of 1997 upon a revisional application filed under section 115(1) of the Code of Civil Procedure calling upon the opposite party No. 1 to show cause as to why the judgment and decree dated 18.02.1997 passed by the learned Subordinate Judge and Artha Rin Adalat, Khulna in Title Appeal No. 212 of 1995 (analogously heard with Title Appeal Nos. 209 of 1995 and 210 of 1995) allowing the appeal and thereby reversing the judgment and decree dated 25.05.1995 passed by the learned Assistant Judge, Terokhada, Khulna in the Title Suit No. 42 of 1993 should not be *set aside*.

At the instance of the present plaintiff-respondent-petitioners, Md. Abdul Barek Shaikh and others, the Rule was issued in Civil Revision No. 2976 of 1997 upon a revisional application filed under section 115(1) of the Code of Civil Procedure calling upon the opposite party No. 1 to show cause as to why the judgment and decree dated 18.02.1997 passed by the learned Subordinate Judge and Artha Rin Adalat, Khulna in Title Appeal No. 210 of 1995 (analogously heard with Title Appeal Nos. 209 of 1995 and 212 of 1995) allowing the appeal and thereby reversing the judgment and decree dated 25.05.1995

passed by the learned Assistant Judge, Terokhada, Khulna in the Title Suit No. 03 of 1994 should not be *set aside*.

The relevant facts for disposal of these 3 (three) Rules, *inter alia*, are that the present petitioners, Md. Abdul Barek Shaikh and others, as the plaintiffs filed Title Suit No. 03 of 1994 in the court of the learned Assistant Judge, Terokhada, Khulna against the opposite parties for cancellation of the deeds being Deed No. 1749 dated 13.09.1989 and Deed No. 91 dated 07.01.1990 and also for confirmation of possession upon the suit land.

The plaintiffs' case in short is that the above deeds are forged, collusive and ineffective. Defendant No. 1 contested the suit by filing a written statement denying the material allegations made in the plaint. The present petitioners, Md. Abdul Barek Shaikh and others as the plaintiffs' also filed Title Suit No. 04 of 1994 before the same court which was decreed. On the other hand, Md. Sayed Ali Shaikh, as the plaintiff-petitioner filed Title Suit No. 42 of 1993 in the court of the learned Assistant Judge, Terokhakda, Khulna for permanent injunction which was dismissed.

The opposite party No. 1, Md. Sayed Ali Shaikh, as the plaintiff filed the Title Suit No. 42 of 1993 with a prayer to decree the suit for a permanent injunction upon the suit land measuring **1.68** acres situated at Mouza- Bipro Ajogora (বিপ্র আজুগড়া), S. A. Dag No. 138, Mouza- Rustom Ajogora (রুস্তম আজুগড়া), S. A. Dag No. 56 and Mouza- Sreefaltala (শ্রীফলতলা), S. A. Dag No. 1372, Police Station- Terokhada/Rupsha, District- Khulna.

After hearing the respective parties the learned trial court decreed the Title Suit No. 04 of 1994 by his judgment and decree dated 25.05.1995. Being aggrieved, the opposite party No. 1, Md. Sayed Ali Shaikh, preferred the Civil Appeal No. 209 of 1995 in the court of the learned Subordinate Judge and Artha Rin Adalat, Khulna against the said judgment of the learned trial court and the appeal was heard by the learned Subordinate Judge and Artha Rin Adalat, Khulna and passed the judgment and decree dated 18.02.1997 by reversing the judgment and decree passed by the learned trial court. Being aggrieved the present petitioners, Md. Abdul Barek Shaikh and others filed the Civil Revision No. 2965 of 1997 before this court under section 115(1)

of the Code of Civil Procedure and the Rule was issued thereupon.

The present petitioners, Md. Abdul Barek Shaikh and others as the plaintiffs' filed the Title Suit No. 03 of 1994 for cancellation of the sale deed No. 1750 dated 07.01.1990 and also confirmation of possession upon the total land measuring $1.05\frac{1}{2}$ acres situated at Mouza- Bipro Ajogora (বিপ্র আজুগড়া), S. A. Dag No. 138, Mouza- Rustom Ajogora (রুস্তম আজুগড়া), S. A. Dag No. 56 and Mouza- Sreefaltala (শ্রীফলতলা), S. A. Dag No. 1372, Police Station- Terokhada/Rupsha, District- Khulna.

After hearing the parties the learned Assistant Judge, Terokhada, Khulna decreed the suit by his judgment and decree dated 25.05.1995. Being aggrieved the present opposite parties as the plaintiffs' preferred the Title Appeal No. 209 of 1995 before the learned District Judge, Khulna which was heard by the learned Subordinate Judge and Artha Rin Adalat, Khulna who after hearing the parties and examining the documents adduced and produced by the parties came to a conclusion to allow the appeal and thereby reversing the judgment and decree dated

25.05.1995 of the learned trial court by his judgment and decree dated 18.02.1997.

Being aggrieved by the said impugned judgment and decree the revisional application has been filed under section 115(1) of the Code of Civil Procedure and the Rule was issued in Civil Revision No. 2976 of 1997.

The relevant and nearly common and similar facts of these all Rules for disposal, *inter alia*, are that the opposite party as the plaintiff, Md. Sayed Ali Shaikh, filed the Title Suit No. 42 of 1993 praying for a permanent injunction upon the suit land described above. The plaint further contains that the land appertaining to Mouza- Bipro Ajogora (বিপ্র আজুগড়া), S. A. Khatian No. 35, Dag No. 138, Police Station- Terokhada, District- Khulna land measuring .57 decimals belonged to one Mominuddin, Ataruddin, Rahanuddin, Aminuddin and Shahida Khatun. In the course of the trial, their successors transferred land in favour of the plaintiffs and inherited by the plaintiffs' land described in the schedule of the plaint. Momenuddin obtained the loan from the Bangladesh Krishi Bank mortgaging the property. At one point of time, there was a shalish by the local chairman under the name of Amalnama (আমলনামা). The

present petitioners as the defendants contested the suit claiming that the sale deeds dated 07.01.1990, gift deed dated 05.08.1930 and also registered kabala deed dated 15.12.1969 are all forged and collusive.

After hearing the parties the learned trial court decreed the Title Suit Nos. 03 and 04 of 1994. Being aggrieved the Title Appeal Nos. 209 and 210 of 1995 were filed. Those two appeals were heard analogously and were dismissed by reversing the judgment of the learned trial court.

The Civil Revision No. 2965 of 1997 and the Civil Revision No. 2976 of 1997 were also filed by the present petitioners, Md. Abdul Barek Shaikh and others, for cancellation of deed No. 1749 dated 13.09.1989 and deed No. 91 dated 07.01.1990.

The Civil Revision No. 2976 of 1997 was also filed by the present petitioners, Md. Abdul Barek Shaikh and others with similar prayers for cancellation of 2 (two) deeds.

After hearing the parties the learned trial court dismissed the suits but both the suits were disallowed by the learned appellate court below by reversing the judgment regarding the above 2 (two) deeds.

These 3 (three) revisional applications were filed by the present petitioners as well as by the present opposite parties regarding the land appertaining to above mentioned 3 (three) Mouzas and 2 (two) Police Stations but within the same District-Khulna, as such, all the 3 (three) suits were heard analogously by the similar learned trial court and the similar learned appellate court below, as such, these 3 (three) Rules were issued impugning the same judgment and decree.

These matters have been appearing in the daily cause list of this court and another court's cause list for a long period of time for hearings. When these 3 (three) matters were taken up for hearing no one appears to support the Rules at any point of time despite these 3 (three) Rules were issued at least 25 years ago. However, the learned Advocate Mr. Md. Motiur Rahman appeared before this court only today and submits that the Advocate's file of these 3 (three) civil revisions were taken away from him in order to conduct the hearing by another lawyer but he also never appeared before this court to support the Rules.

Mr. Md. Aktaruzzaman, the learned Advocate, appearing along with the learned Advocate, Mr. A. F. M. Mizanur Raham before this court to oppose the Rules.

Mr. Md. Aktaruzzaman, the learned Advocate, appearing along with the learned Advocate, Mr. A. F. M. Mizanur Rahman for the opposite party No. 1, submits that Mominuddin Shaikh is the vendor/ executant of sale deed No. 1749 dated 13.09.1989 and sale deed No. 91 dated 07.01.1990. Syed Ali Shaikh filed an application on 25.06.1994 in Title Suit No. 04 of 1994 to send the 2 (two) sale deeds for having an expert's opinion of thumb impressions which was allowed, thereafter, the defendants filed an application on 23.08.1994 admitting the thumb impressions of Mominuddin Shaikh and ultimately deeds were not sent for expert's opinion.

He further submits that Abdul Barik, son of Mominuddin identified his father's thumb impressions who was the executor of sale deed No. 1749 dated 13.09.1989 but the present petitioners did not send the signatures and thumb impressions of Abdul Barek to the expert to compare the signatures and thumb impressions which amounts to admission.

He also submits that the sale deed No. 91 dated 07.01.1990 was registered on commission in the house of Mominuddin Shaikh at daylight, if, Sayed Ali had bad intentions

he would never do it which leads to believe that the 2 (two) sale deeds were executed and registered properly and willingly.

Considering the above submissions made by the learned Advocates for the opposite parties and also considering the 3 (three) revisional applications filed under section 115(1) of the Code of Civil Procedure along with the annexures therein by the respective parties, in particular, perusing the impugned judgment and decree dated 18.02.1997 passed by the learned Subordinate Judge and Artha Rin Adalat, Khulna in Title Appeal No. 210 of 1995 analogously Title Appeal No. 212 of 1995 and Title Appeal No. 209 of 1995 as well as, considering the vital materials available in the lower courts records, it appears to me that Mominuddin Shaikh and others were the original owners of the suit lands described in 3 (three) complaints filed before the learned trial court. These suits were either decreed or dismissed by the learned trial court in the respective suits. However, the learned appellate court below analogously heard and passed the impugned judgment and decree reversing the decision of the learned trial court.

The common reasons for reversing the judgment by the appellate court below appears to be that the learned trial court

was wrong as to the claim of permanent injunction or claim of prayer for cancellation of the sale deeds dated 13.09.1989 and 07.01.1990 for confirmation of possession.

I have perused the impugned judgment of the learned appellate court below and the judgment of the learned trial court and I found that the learned appellate court below came to a lawful conclusion regarding the respective prayers of the parties. In particular, about the prayer for permanent injunction and also cancellation of the above 2 (two) deeds because the creator of the deeds was not properly executed by the original vendor Mominuddin. However, the learned trial court decreed the suit whereas the learned appellate court below lawfully cancelled the deeds and confirmed the possession of the present opposite parties.

The learned trial court also unlawfully dismissed the Title Suit No. 42 of 1993 claiming for a permanent injunction but the learned appellate court below came to a lawful conclusion to allow the appeal by reversing the judgment of the learned trial court.

In view of the above discussions, I am of the opinion that no further consideration is required from this court in order to

these 3 (three) long-pending Rules without taking any proper steps by the petitioners at any point of time of the hearing. Therefore, I am not inclined to interfere into the judgment and decree passed by the learned appellate court below analogously in 3 (three) cases which were reversed by the learned appellate court below.

Accordingly, I do not find any merits in 3 (three) Rules issued in the Civil Revision No. 2965 of 1997, Civil Revision No. 2975 of 1997 and also Civil Revision No. 2976 of 1997.

In the result, the 3 (three) Rules issued by this court in the Civil Revision No. 2965 of 1997, Civil Revision No. 2975 of 1997 and also Civil Revision No. 2976 of 1997 are hereby discharged.

The impugned judgment and decree dated 18.02.1997 passed by the learned Subordinate Judge and Artha Rin Adalat, Khulna is hereby upheld.

The interim orders of stay passed at the time of issuance of the Rules and extended from time to time and lastly, those were extended till disposal of the Rules are hereby recalled and vacated.

The concerned section of this court is hereby directed to send down the lower court records along with a copy of this judgment and order to the learned Subordinate Judge and Artha Rin Adalat, Khulna immediately.